

An Act

ENROLLED SENATE
BILL NO. 259

By: Howard and Burns of the
Senate

and

Newton and Boles of the
House

An Act relating to water and water rights; amending 82 O.S. 2021, Sections 1020.12 and 1020.15, which relate to groundwater use, reporting, metering, and permitting; modifying reporting requirements for certain water use; providing for fines and penalties; modifying permitting exclusions; requiring Oklahoma Water Resources Board to investigate certain usage complaints; directing metering and measurement of certain groundwater usage subject to Oklahoma Water Resources Board monitoring; requiring Oklahoma Water Resources Board to promulgate rules and implement certain policies relating to groundwater users; expanding duties of the Oklahoma Water Resources Board; updating statutory language and references; providing for codification; and providing an effective date.

SUBJECT: Groundwater use

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.12, is amended to read as follows:

Section 1020.12. A. Holders of permits shall be required to report to the Oklahoma Water Resources Board annually their use of water pursuant to their permits. Holders of permits shall remit the report as required by the Board in the period following the permitted use. Willful failure to report annual usage may result in

cancellation penalties, fines, or suspension of the permit by the Board upon proper notice and hearing as provided in the Administrative Procedures Act. Nonuse, conservation, or usage practices that result in less usage than the permit maximum shall not result in diminishment of the permit holder's future permitted equal proportional share.

B. Holders of permits which use groundwater in connection with an animal feeding operation which houses swine and primarily uses a liquid waste management system where animals are primarily housed in a roof-covered structure shall be required to indicate such use in their annual water use report. Such holders shall also indicate whether or not the animal feeding operation is licensed pursuant to the Oklahoma Concentrated Animal Feeding Operations Act.

C. The Board shall notify the ~~State~~ Oklahoma Department of Agriculture, Food, and Forestry of the names and addresses of all permit holders who report usage of groundwater in connection with an animal feeding operation which houses swine and which primarily uses a liquid waste management system where animals are primarily housed in a roof-covered structure and who are not licensed pursuant to the Oklahoma Concentrated Animal Feeding Operations Act.

SECTION 2. AMENDATORY 82 O.S. 2021, Section 1020.15, is amended to read as follows:

Section 1020.15. A. The Oklahoma Water Resources Board shall not permit any groundwater user to commit waste by:

1. Drilling a well, taking, or using groundwater without a permit, except for domestic use as defined in this title;
2. Taking more groundwater than is authorized by the permit;
3. Taking or using groundwater in any manner so that the water is lost for beneficial use;
4. Transporting groundwater from a well to the place of use in such a manner that there is an excessive loss in transit;
5. Using groundwater in such an inefficient manner that excessive losses occur;

6. Allowing any groundwater to reach a pervious stratum and be lost into cavernous or otherwise pervious materials encountered in a well;

7. Permitting or causing the pollution of a fresh water strata or basin through any act which will permit fresh groundwater polluted by minerals or other waste to filter or otherwise intrude into such a basin or subbasin. The Board shall be precluded from determining whether waste by pollution will occur pursuant to the provisions of this paragraph if the activity for which the applicant or water user intends to or has used the water as specified under Section 1020.9 of this title is required to comply with rules and requirements of or is within the jurisdictional areas of environmental responsibility of the Department of Environmental Quality or the Oklahoma Department of Agriculture, Food, and Forestry;

8. Drilling wells and producing groundwater therefrom except in accordance with the well spacing previously determined by the Board;

9. Using groundwater for air conditioning or cooling purposes without providing facilities to aerate and reuse such water; ~~or~~

10. ~~Failure~~ Failing to properly plug abandoned water wells in accordance with rules of the Board and file reports thereof; or

11. Using groundwater for cooling purposes at a data processing facility or data center through open-air evaporative cooling systems or any other cooling technology that consumes groundwater through evaporation or discharge without recirculation. Groundwater permits for such facilities shall only be issued if the applicant demonstrates that the cooling system utilizes closed-loop, dielectric immersion, or other comparably low-consumptive cooling technologies that substantially recirculate groundwater and minimize consumptive loss as determined by the Board.

B. Complaints by any individual in violation of the provisions of subsection A of this section shall be made to the Board and to the local groundwater irrigation district, if such district is established pursuant to the Groundwater Irrigation District Act. Investigation of such complaints shall be made by the Board, in

conjunction with such other agencies, boards, or the district, with which the Board may contract. Except as otherwise provided by paragraph 7 of subsection A of this section, any employee of the Board having evidence that an act of waste is being committed in his or her presence, or after investigation of a complaint filed by another individual, shall take steps to assure that the waste ceases upon review of reporting, audits of usage, an investigation of a complaint filed by any person, or the Board's own independent determination, the Board shall take action to cease commission of such waste and impose fines and penalties on such user as provided in Section 1020.22 of this title. Such steps shall include, but shall not be limited to pursuing voluntary compliance, obtaining the issuance of a cease and desist order by the Executive Director of the Oklahoma Water Resources Board, imposing progressive fines and penalties related to the severity and frequency of waste, requiring more frequent reporting of usage, instituting action in a court of competent jurisdiction to enjoin the waste, pursuing a suspension of any suspending the permit or other administrative remedies by the Board, and filing a complaint in the district court of the county wherein such violation has occurred, and it shall be the duty of the district attorney of said such county to prosecute such complaint.

C. In cases of waste by pollution pursuant to paragraph 7 of subsection A of this section, any complaint or investigation, or any enforcement matter other than an individual proceeding involving the suspension of an Oklahoma Water Resources Board permit, shall be referred to and subject to the jurisdiction of the Department of Environmental Quality or other appropriate state environmental agency or state agency with limited environmental responsibility.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1020.19B of Title 82, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Water Resources Board shall promulgate rules and implement policies for the purposes of directing its agents, employees, and systems to:

1. Accept, audit, and review reporting on a timely basis from permitted groundwater users;

2. Modernize its data collection system with respect to permitted groundwater users and implement a program to receive and index usage reports by an online or electronic system;

3. Investigate any claims of waste pursuant to Section 1020.15 of Title 82 of the Oklahoma Statutes; and

4. Impose fines and penalties for overuse of water allotments under a permit by any permitted well user or waste pursuant to Section 1020.15 of Title 82 of the Oklahoma Statutes.

SECTION 4. This act shall become effective November 1, 2026.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____